

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

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RANDY DAMAS,

Plaintiff,

COMPLAINT

16 CV 1690

- against -

THE CITY OF NEW YORK, ADAN MUNOZ,
Shield 1313 Tax ID 935372, DANIEL LEVINE,
Tax ID 945917, and ARMENGOL DEIDA, Shield
00282 Tax ID 940064, employees of the New
York City Police Department,

Defendants.

Jury Trial Demanded

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Randy Damas, by his attorney, the Law Office of Matthew Flamm, alleges the following upon information and belief as his Complaint:

Nature of the Action

1. This civil rights action arises from defendants' May 26, 2015 arrest, strip search, and attempted prosecution of Randy Damas. Plaintiff seeks compensatory and punitive damages for violation of his civil rights under 42 U.S.C. §1983.

Jurisdiction and Venue

2. This action arises under the United States Constitution and 42 U.S.C. §1983. This Court has subject matter jurisdiction pursuant to 28 U.S.C. §1331 and §1343(3). Plaintiff requests that this Court exercise pendent jurisdiction over those state law claims arising out of the same common nucleus of operative facts as do plaintiff's federal claims.

3. Under 28 U.S.C. §1391(b), venue is proper in the Eastern District of New York because events giving rise the claims herein occurred in that judicial District.

Parties

4. Plaintiff Randy Damas is a citizen of the United States of America living in the State of Florida. At all times mentioned herein, plaintiff resided in the City and State of New York, County of Queens.

5. Defendant The CITY OF NEW YORK is a municipal corporation duly incorporated and existing under the laws of New York State. Pursuant to its Charter, New York City has established and maintains a Department of Police as a constituent department or agency. At all times relevant, the City of New York employed the police officers involved in the incidents underlying this lawsuit.

6. Defendant ADAN MUNOZ was at all times relevant a duly appointed and acting employee of the New York City Police Department holding the rank of Sergeant and assigned, upon information and belief, to the Queens Narcotics Division. He is sued in his individual capacity.

7. Defendant DANIEL LEVINE was at all times relevant employed by the New York City Police Department and assigned, upon information and belief, to Queens Narcotics Division. Defendant Levine, who is sued in his individual capacity, retired from the NYPD as of June 27, 2015.

8. Defendant ARMENGOL DEIDA was at all times relevant employed by the New York City Police Department and assigned, upon information and belief, to the Queens Narcotics Division. He is sued in his individual capacity.

9. At all times relevant, defendants MUNOZ, LEVINE, and ARMENGOL (the “individual defendants”), and the other police personnel involved in the incidents underlying this lawsuit were acting under color of state law.

10. The individual defendants and other police personnel involved in the incidents underlying this lawsuit were, at all times relevant, agents, servants and employees acting within the scope of their employment by the City of New York.

Facts Underlying
Plaintiff's Claims for Relief

11. On May 26, 2015 at approximately 2:30 p.m., Randy Damas was seated in the front driver's seat of an automobile lawfully parked across the street from plaintiff's residence at 132-36 220th Street, Queens, New York.

12. Also seated in the front seat was a friend of plaintiff, Sylvester Wright. The front passenger door was open.

13. The key was in the ignition and turned to the accessory position. The engine was not on.

14. The pair, who had earlier that day attended the funeral services of a well-know Queens rapper, Lionel “Chinx” Pickens, were neatly dressed and listening to music and speaking. Mr. Damas was charging his mobile phone.

15. The individual defendants, believed to be part of a street narcotics enforcement team, drove past Mr. Damas in their unmarked vehicle. They circled the block and again drove past Mr. Damas and Mr. Wright, did a U Turn, exited their auto, and approached plaintiff with their guns drawn.

16. One of the individual defendants believed to be Daniel Levine demanded Mr. Damas' driver's license and the vehicle registration. Plaintiff's license

was in his home across the street, and Mr. Damas gave the individual defendants his passport and the vehicle registration.

17. Mr. Damas and Mr. Wright were ordered out of the auto and to the rear car where plaintiff was pat-frisked and his pockets gone into.

18. The defendants searched the automobile repeatedly. No evidence of a crime or contraband was found.

19. Despite that Mr. Damas had done nothing unlawful, he was nonetheless handcuffed, with defendants falsely claiming that Mr. Damas' driver's license was suspended.

20. Mr. Damas' New York State driver's license was not suspended.

21. Mr. Damas was neither driving nor operating the motor vehicle.

22. Defendants did not have lawful justification to detain, search, or arrest.

23. Mr. Damas, in handcuffs, was placed in an unmarked, windowless van and driven around for hours while the narcotics team patrolled and arrested.

24. Mr. Damas was eventually brought to the 105th precinct, where, among other things, plaintiff was strip searched by one of the individual defendants in a holding cell with the knowledge and acquiescence of other defendants and police personnel.

25. Plaintiff was eventually taken to Queens Central Booking where he was searched again.

26. While Mr. Damas was imprisoned, defendant Munoz and others, in an attempt to have Mr. Damas prosecuted, prepared or allowed to be prepared false police reports accusing Mr. Damas of still unknown crimes.

27. The individual defendants and others caused and allowed false statements to be filed with and made to the Queens County District Attorney's Office.

28. Plaintiff was eventually released after the Queens County District Attorney's Office reviewed the allegations and evidence and declined to prosecute.

29. Mr. Damas was released from Central Booking without seeing a Judge or being arraigned.

30. The individual defendants, despite having a reasonable opportunity to do so, took no action to prevent, end, or truthfully report the unlawful stop, search, arrest, strip search, and attempted prosecution of Mr. Damas.

31. The acts and omissions caused Mr. Damas to suffer loss of liberty, physical pain, the privations and indignities of the arrest to arraignment process, mental and emotional upset and trauma, fear, humiliation, and deprivation of his constitutional rights, among other injuries.

32. The individual defendants, at all times relevant, and in, arresting, jailing, and strip searching Mr. Damas, and in offering false evidence to the District Attorney and Criminal Court Judges, acted intentionally, willfully, maliciously, negligently, and with reckless disregard for and deliberate indifference to plaintiff's rights and physical and mental well-being.

FIRST CLAIM FOR RELIEF FOR
VIOLATING PLAINTIFF'S RIGHT TO BE FREE FROM
UNREASONABLE SEARCHES AND SEIZURES UNDER THE FOURTH AND
FOURTEENTH AMENDMENTS TO THE UNITED STATES CONSTITUTION

33. Plaintiff repeats and realleges the forgoing paragraphs allegation as if fully set forth herein.

34. By the actions described above, individual defendants deprived Mr. Damas of his rights secured by the Constitution and laws of the United States in violation of 42 U.S.C. §1983, including, but not limited to his right to be free and secure in his person and his right to be free from arrest or search, except on probable cause or pursuant to warrant, and that plaintiff was stopped without reasonable suspicion, and that plaintiff was strip searched without lawful basis.

35. As a consequence thereof, Randy Damas has been injured.

SECOND CLAIM FOR RELIEF FOR FALSE ARREST AND IMPRISONMENT

36. Plaintiff repeats the allegations of the foregoing paragraphs as though fully stated herein.

37. By reason of the foregoing, plaintiff was intentionally confined without privilege or probable cause to believe a crime had been committed. Plaintiff was aware of and did not consent to the confinement. Plaintiff was thereby falsely arrested and imprisoned.

38. As a consequence thereof, Randy Damas has been injured.

THIRD CLAIM FOR RELIEF FOR ASSAULT

39. Plaintiff repeats the allegations of the foregoing paragraphs as though fully stated herein.

40. By the actions described above, plaintiff was intentionally placed in apprehension of imminent harmful and offensive contact.

41. As a consequence thereof, Randy Damas has been injured.

FOURTH CLAIM FOR RELIEF FOR BATTERY

42. Plaintiff repeats the allegations of the foregoing paragraphs as though fully stated herein.

43. By the actions described above, plaintiff was intentionally touched in a harmful and offensive manner.

44. As a consequence thereof, Randy Damas has been injured.

FIFTH CLAIM FOR RELIEF AGAINST DEFENDANT
MUNOZ FOR IMPROPER SUPERVISION OF HIS SUBORDINATES

45. Plaintiff repeats the allegations of the foregoing paragraphs as though fully stated herein.

46. At all times relevant, defendant Munoz was employed as a Sergeant by the New York City Police Department with supervisory authority over and responsibility for the conduct of the other individual defendants.

47. Defendant Munoz failed to properly supervise his subordinates or to otherwise take action to remedy the wrong done to the Randy Damas. Defendant Munoz was grossly negligent in supervising by, among other things, failing to properly report upon the incident and failing to take any disciplinary action against the other individual defendants.

48. As a consequence thereof, Randy Damas has been injured.

SIXTH CLAIM FOR RELIEF FOR FAILURE TO INTERVENE
TO PREVENT THE VIOLATION OF PLAINTIFF'S CIVIL RIGHTS

49. Plaintiff repeats and realleges the foregoing paragraphs allegation as if fully set forth herein.

50. The individual defendants were present during the conduct to which Mr. Damas was subjected, had a reasonable opportunity prevent or end the conduct, and nonetheless failed to intervene to prevent, end, or truthfully report the unlawful conduct to which Mr. Damas was subjected.

51. As a consequence thereof, Randy Damas has been injured.

SEVENTH CLAIM FOR RELIEF FOR NEGLIGENCE

52. Plaintiff repeats the allegations of the foregoing paragraphs as though fully stated herein.

53. The acts complained of herein resulted from defendant City of New York, through its agents, servants and employees, breaching its duty properly to screen, assign, train, supervise, monitor, or discipline its law enforcement personnel, including assigning, training, supervising, monitoring, or disciplining individual Police personnel who unlawfully stop, arrest, search, strip search, and make false allegations in aid of prosecution.

54. The defendant City of New York's failure properly to assign, train, supervise, monitor, or discipline its Police, including the Police personnel involved herein, constitutes acquiescence in and tolerance of ongoing unconstitutional arrests, uses of force, and lodging of false allegations, and allowed the individual defendants to believe that they could with impunity abuse, arrest, and prosecute Mr. Damas.

55. Upon information and belief, defendant City knew or should have known through the exercise of reasonable diligence that the individual defendants violate arrestees' constitutional rights and were and are potentially dangerous, as evidenced by the fact that they have been named as defendants in multiple civil

rights lawsuits, such as Bell v. City of New York, Munoz, and Others, 14 CV 4585 (EDNY); Cayemittes v. City of New York, Munoz, and Others, 15 CV 0236 (EDNY); Dunn v. City of New York, Munoz, and Others, 14 CV 0591 (EDNY); Giles v. City of New York, Munoz, and Others, 15 CV 0893 (EDNY); Johnson v. City of New York, Deida and Others, 13 CV 0921 (EDNY); Rodriguez v. City of New York, Munoz, and Others, 15 CV 0793 (EDNY); and Watson v. City of New York, Deida and Others, 13 CV 5847 (EDNY).

56. Defendant City's negligence in screening, hiring, training, disciplining, and monitoring proximately caused plaintiff's injuries.

57. As a consequence thereof, Randy Damas has been injured.

Request for Relief

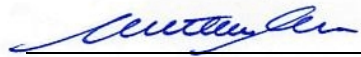
WHEREFORE, plaintiff respectfully requests that judgment be entered as follows:

- (A) Compensatory damages in an amount to be fixed at trial;
 - (B) By reason of the wanton, willful and malicious character of the conduct complained of herein, punitive damages in an amount to be fixed at trial;
 - (C) An award to plaintiff of the costs and disbursements herein;
 - (D) An award of attorney's fees under 42 U.S.C. §1988;
- and

(E) Such other and further relief as this Court may deem
just and proper.

Dated: April 7, 2016
Brooklyn, New York

Law Office of Matthew Flamm
Attorney for Plaintiff Randy Damas
26 Court Street, Suite 2208
Brooklyn, New York 11242
(917) 495-2331
(718) 797-3117
matthewflamm@msn.com



Matthew Flamm